

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 08/10/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: C23-00559
CASE NAME: PACIFIC HIGHWAY RENTALS, LLC VS. BROOKLYN SWEEPS, INC.
2 DAYS
FILED BY:
TENTATIVE RULING:

A Notice of Conditional Settlement was filed on July 2, 2026. The trial date is VACATED. The parties are directed to file a dismissal with a reservation of jurisdiction pursuant to Code of Civil Procedure section 664.6.

2. 10:00 AM CASE NUMBER: N26-0539
CASE NAME: AARON BAILEY, JR. VS. BENARD ROBINSON
FILED BY:
TENTATIVE RULING:

Parties to Appear.

3. 9:00 AM CASE NUMBER: C23-01267

CASE NAME: L. J. VS. CONTRA COSTA COUNTY

JUDGMENT ON THE PLEADINGS

FILED BY: CONTRA COSTA COUNTY

TENTATIVE RULING:

Before the Court is Defendant County of Contra Costa's Motion for Judgment on the Pleadings ("MJOP"). The Complaint alleges a single cause of action for negligence based on Government Code sections 815.2, 815.4, and 815.6.

Factual Allegations

This matter pertains to allegations of child abuse suffered by Plaintiff while in the foster care system in Contra Costa County. In approximately 1987, Plaintiff was placed in the foster home of Mr. and Mrs. Boutte by Defendants. (¶ 24.) From approximately 1993 to 1998, when Plaintiff was approximately six to eleven years old, Plaintiff was repeatedly sexually abused by Mr. Boutte. (¶ 25-26.) During that time, Plaintiff disclosed the abuse to two different social workers at different times. (¶ 27.) The social workers were agents and/or employees of Defendants. (*Ibid.*) Despite the complaints, no action was taken and no investigation was completed. (*Ibid.*)

In approximately 1999, Plaintiff was placed in the Stars Adolescent Center group foster home in San Leandro, California ("Facility"). (¶ 28.) From approximately 1999-2002, Plaintiff was sexually abused by a male staff member at the Facility. (¶ 29-30.) During this time, several nurses employed by the Facility allowed, observed, participated in, and/or facilitated the abuse. (¶ 31.) Again, no action was taken and no investigation into the abuse was conducted. (*Ibid.*)

Plaintiff generally alleges that at all relevant times Defendants knew or should have known about the abuse and/or the possibility of abuse from the perpetrators. (¶¶ 34-46.)

Plaintiff filed the initial Complaint on May 26, 2023, alleging a single cause of action against the County for negligence. The County filed an Answer on October 16, 2023. The County then filed the instant motion for judgment on the pleadings on May 27, 2026.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) Therefore, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.)

In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.*

(2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group 2008) p. 7:295.)

Analysis

Whether a public entity or employee has a duty to the plaintiff is usually a threshold issue to determine before addressing immunity. The parties do not dispute that the County and its employees owed a duty to Plaintiff. In fact, the County acknowledges as much in its motion. (Motion at 6:13-15.) Instead, the focus of the County's MJOP is whether the County's employees are entitled to discretionary act immunity – and therefore, the County itself is also entitled to immunity.

Plaintiff argues that discretionary act immunity does not apply. In addition, even if discretionary act immunity does apply, the County is still liable based on breach of mandatory reporting duties – which are separately actionable.

Discretionary Act Immunity

The County argues that the recent case of *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 is controlling. As summarized by the *K.C.* court, the “operative complaint alleged: (1) K.C. was sexually assaulted at two separate foster care placements in the 1970’s; (2) K.C. gave notice to County – via social workers – of this abuse; and (3) no investigative or corrective action was taken.” (*Id.* at 616.) Except for the timeframe, the facts alleged in this matter are extremely similar.

The *K.C.* court began its analysis by noting that “[w]hether or not a public employee is immune from liability under [Government Code] section 820.2 depends ... upon whether the act [or omission] in question was ‘discretionary.’” (*Id.* at 617.) It recognized that such immunity does not extend to all decisions made by public employees, but that “discretionary immunity ‘is limited to policy and planning decisions, and does not reach ‘lower level decisions that merely implement a basic policy already formulated.’” (*Ibid.*) The *K.C.* court then went on to explain at length why the discretionary immunity under Government Code section 820.2 applied to the case before it:

The social workers’ decisions at issue relate to “the investigation of child abuse” (*Jacqueline, supra*, 155 Cal.App.4th at p. 466) and discontinuation of a foster home placement (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1466 (*Becerra*)) “based upon suspicion of abuse” (*Alicia T. v. County of Los Angeles* (1990) 222 Cal.App.3d 869, 881 (*Alicia*)). They not only “involve[] the exercise of analysis and judgment as to what is just and proper under the circumstances” (*Kemmerer, supra*, 200 Cal.App.3d at p. 1438) but also constitute “sensitive policy decision[s] that require[] judicial abstention to avoid affecting a coordinate governmental entity’s decisionmaking or planning process” (*Barner v. Leeds* (2000) 24 Cal.4th 676, 688 (*Barner*)). (See *Alicia, supra*, at p. 883 [continuing exercise of discretion “in favor of the protection of minor children”].) These qualities hold true for, as here, “preliminary determinations” that “reports of possible abuse” “did not warrant initiation” of further action. (*Jacqueline, supra*, at p. 468; see *Ortega v. Sacramento County Dept. of Health & Human Services* (2008) 161 Cal.App.4th 713, 733 [“[E]valuation of information is an integral part of ‘the exercise of the discretion’

immunized by [Government Code] section 820.2.”]; cf. *Conway v. County of Tuolumne*, *supra*, 231 Cal.App.4th at p. 1015 [police officer’s decision “to investigate or not investigate” a vehicle accident immunized by Gov. Code, § 820.2].)

The K.C. court went on to explain the policy reasons in favor of upholding immunity for social workers. (*Id.* at 618.) The Court then noted that, on appeal, K.C. argued that the social worker’s failure to investigate or take corrective action was ‘operational and ministerial’ because it was done ‘in the course of the continuing supervision of her foster care’; and those types of decisions are not discretionary, policy-type decisions. (*Ibid.*) K.C. argued that the “decision to remove a child from his or her natural parents and place that child in custodial foster care must be distinguished from decisions made while supervising a foster child *after* the decision to undertake custody and initiate foster care is made. While the former decisions may be discretionary, the latter are operational and ministerial.”

Those arguments mirror the arguments made by Plaintiff in this action. For example, Plaintiff argues in her opposition that “there is a clear line of demarcation between the basic policy decision to place a child in foster care and the ministerial acts of county social workers implementing that decision. While the former is entitled to immunity under Gov. Code section 820.2, the latter decisions are not.” (Opp. at 11:22-25.) The K.C. court addressed these arguments:

We do not dispute that decisions pertaining to foster care placement are discretionary acts within the meaning of Government Code section 820.2. (*Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1285 (*Gabrielle*); *Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1381 (*Christina*).) Nor do we question that “maintenance of a child in a foster home involves an obligation of continued supervision” and much of what is required “in terms of continued administration of the child’s welfare undoubtedly constitutes simple and uncomplicated surveillance which reasonably could be characterized as ministerial.” (*Ronald S. v County of San Diego* (1993) 16 Cal.App.4th 887, 898.) However, decisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such surveillance and are “[no] less ‘discretionary’ for purposes of the immunity of Government Code section 820.2 than the original placement decision.” (*Becerra, supra*, 68 Cal.App.4th at p. 1466.) We do not accept the notion that a “subjective decisionmaking process” “could [be] transmute[d]” “into a ministerial act” (*Ronald, supra*, at p. 897) simply because that process assesses incidents that occurred within a foster home.

The K.C. court then addressed the arguments that the demurrer should be overruled because “the operative complaint did not indicate ‘an employee of the County made a considered ... decision’ or ‘actually exercised’ ‘discretion ... by the weighing of risks and benefits in deciding on the challenged course of action.’” (*Id.* at 619.)

While a finding of immunity is precluded “solely on grounds that ‘the [affected] employee’s general course of duties is “discretionary””’” (*Caldwell, supra*, 10 Cal.4th at p. 983, italics omitted) and “requires a showing that ‘the specific conduct giving rise to the suit’ involved an actual exercise of discretion, i.e., a ‘[conscious] balancing [of] risks and advantages”’” (*ibid.*, italics omitted), “a strictly careful, thorough, formal, or

correct evaluation” is not mandatory (*ibid.*, italics omitted). “Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy.” (*Id.* at pp. 983–984; see *Gabrielle, supra*, 10 Cal.App.5th at p. 1285 [“Courts have determined immunity applies to such decisions no matter how horrible the outcome, including a situation where a social worker returned a child to a father, who stabbed the child in the heart and lungs shortly thereafter.”]; *Christina, supra*, 220 Cal.App.4th at p. 1381 [discretionary immunity “applies even to ‘lousy’ decisions in which the [social] worker abuses his or her discretion, including decisions based on ‘woefully inadequate information.’”].) (*Id.* at 619.)

As is the case here, the *K.C.* court summarized its analysis of the above with respect to the allegations of the complaint before it:

Here, under a “fair reading” of the complaint (*Caldwell, supra*, at p. 984), *K.C.* essentially alleged County’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. “[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.” (*Caldwell, supra*, at p. 984, fn. & italics omitted.) (*Id.* at 619-20.)

Accordingly, the *K.C.* court found that the County’s demurrer was properly sustained without leave to amend. (*Id.* at 620.)

Plaintiff attempts to distinguish *K.C.* by primarily relying on *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465. Initially, it is worth noting that the *K.C.* court was provided with this authority and discussed it in a footnote, noting that *D.G.* addressed whether discretionary immunity was a proper basis for granting summary judgment “and is therefore inapposite.” (*K.C.* 109 Cal.App.5th at 620 fn. 9.)

“Summary judgment ... provides a method by which, if the pleadings are *not* defective, the court may determine whether the triable issues apparently raised by them are real or merely the product of an adept pleading.” (*Leo F. Piazza Paving Co. v. Foundation Constructors, Inc.* (1981) 128 Cal.App.3d 583, 591, fn. 4 italics in original.) Conversely, “[t]he purpose of a demurrer is to test the legal sufficiency of a pleading not to test the evidence or other extrinsic matters.” (*Ibid.*) In contrast to *D.G.*, the instant case involves a defective complaint. As such, *D.G.* is not applicable.

Plaintiff also cites *Elton v. County of Orange* (1970) 3 Cal.App3d 1053 as support for their position. There, the court determined that decisions about the maintenance, care, or placement of a child ‘do not achieve the level of basic policy decisions’ and are not immune from liability under section 820.2. (*Id.* at 1058; see *Opp.* at 11:13-21.) It has been noted that *Elton* has limited, if any, precedential value as it was decided before the adoption of statutes requiring social workers to exercise discretion. (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1464.) It was also persuasively distinguished in *Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th 887 which found *Elton* to be a “difficult decision.” (*Id.* at 898.) As the *Ronald S.* court explained: “Selecting and certifying a foster home for care of dependent children seems to us to be an activity loaded with subjective

determinations and fraught with major possibilities of an erroneous decision. It appears to us that foster home placement, like adoption placement, constitutes an activity of a co-equal branch of government, and that the discretionary decisions made in connection therewith should be deemed beyond the proper scope of court review.” (*Ibid.*)

This rationale applies with equal strength to decisions related to removing a child from a foster home based on allegations of abuse.

Mandatory Reporting Duties

Plaintiff points out in opposition that the County’s MJOP fails “because Plaintiff sufficiently alleges breaches of mandatory duties for which there is no immunity.” (Opp. at 11:19-20 citing *Holman v. County of Butte* (2025) 111 Cal.App.5th 177, Govt Code § 815.6.) The Complaint does specifically allege a basis of liability against the County under California Government Code section 815.6. (¶¶ 58, 59, 71.) Section 815.6 states:

“Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

The Complaint alleges several alleged mandatory duties which were allegedly not complied with. (¶¶ 21, 59, 71.)

The County does not address this alleged basis for liability in its MJOP. As the County’s notice indicates, its MJOP is “brought on the ground that discretionary immunity under Government Code section 820.2 bars Plaintiff’s negligence claim against the County.” The negligence claim, however, is based on both alleged discretionary actions as well as alleged violations of mandatory duties. The County’s opening papers do not address the alleged violations of mandatory duties as a basis for the negligence claim. It does not discuss liability under section 815.6 at all.

“A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of motion.” (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) “The purpose of the notice requirement ‘is to cause the moving party to ‘sufficiently define the issues for the information and attention of the adverse party and the court.’” (*Ibid.*) “Sometimes this purpose is met notwithstanding deficient notice. For example, it may be sufficient that the supporting papers contain the grounds for the relief sought, even if the notice does not.” (*Kinda*, supra, 247 Cal.App.4th at 1277.)

Here, the County failed to not only give notice of its intent to argue that there is no basis for Plaintiff’s claims under the mandatory duties alleged in the complaint, but it also failed to make any such arguments in its opening papers. Instead, it first addressed the issue in reply.

“It is elementary that points raised for the first time in a reply brief are not considered by the court.” (*Magic Kitchen LLC v. Good Things Internat., Ltd.* (2007) 153 Cal.App.4th 1144, 1161 quoting *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1486.) As such, the Court is under no obligation to address the

County's arguments as they were not properly raised. Even if the Court were to address the County's arguments, they would fail.

"A demurrer [or motion for judgment on the pleadings] does not lie to a portion of a cause of action." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.) "A [motion for judgment on the pleadings] must dispose of an entire cause of action to be sustained." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) To the extent the County is claiming that the allegations do not support a 'negligence' cause of action, if "the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against the [motion for judgment on the pleadings]." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Here, the Complaint is clear that it is alleging violations of mandatory duties as a basis of the negligence cause of action. For example, in the section titled "Basis for Liability Against County," the Complaint states:

County is directly liable for negligence under California Government Code Section 815.6 for its failure to discharge mandatory duties set forth in, *inter alia*, Welfare and Institutions Code sections 328, 16501(f), and 16504; Health and Safety Code section 1522, *et seq.*, Penal Code sections 11165.7, 11165.9 and 11166; Department of Social Services Child Welfare Services Manual sections 31-320, 31-401, *et seq.*, and 31-501. (¶ 59.)

Despite arguing that the Complaint did not state a cause of action based on mandatory duties, the County asserts that the complaint "suggests that the County is directly liable for negligence under 815.6 for failure to discharge mandatory duties under the following statutes, none of which form an independent private (sic) of action," then listing the above authorities. The County provides no citation to support its position that "none" of those statutes or manual sections "form an independent private [right] of action."

As noted by Plaintiff, the *Holman* court found that Penal Code section 11166 provides for a mandatory duty to cross-report known or suspected instances of child abuse or neglect. (*Holman*, supra, 111 Cal.App.5th at 192-97.) The court went on to explain:

"We likewise reject the County's argument that the second cause of action fails because section 11166, subdivision (j), does not authorize a private right of action. As our Supreme Court explained in *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490 []: 'If the predicate enactment is of a type that supplies the elements of liability under section 815.6 – [that is,] if it places the public entity under an obligatory duty to act or refrain from acting, with the purpose of preventing the specific type of injury that occurred—then liability lies against the agency under section 815.6, regardless of whether private recovery liability would have been permitted ... under the predicate enactment alone.' (*Id.* at p. 500.) In such a scenario, "[i]t is section 815.6, not the predicate enactment, that creates the private right of action." (*Id.* at pp. 499-500 *italics in original.*)" (*Id.* at 197.)

The Court need not address whether the other authority Plaintiff relies upon provide for a private right of action at this time.

Stay

Plaintiff seeks a stay of this matter pending the California Supreme Court's ruling on *K.C.* While the case has been fully briefed, the California Supreme Court has not scheduled oral argument. As it is unknown when a ruling on the appeal will be issued, the Court declines to stay the proceedings indefinitely pending the decision from the California Supreme Court.

Conclusion

The County's MJOP is **DENIED**.

4. 9:00 AM CASE NUMBER: C23-02588
CASE NAME: JAVETA JOHNSON VS. YAQUELIN REYES
RE KEITH JORDAN PETITION FOR APPROVAL OF COMPROMISE OF CLAIM (PERSON WITH A DISABILITY)

FILED BY:

TENTATIVE RULING:

Petitioner Sandra Jordan, the duly appointed guardian ad litem herein on behalf of the claimant Keith Jordan (the "Claimant"), filed a Petition for Approval of Compromise of Claim (Person with a Disability) on or about February 11, 2026 (the "Petition for Approval of Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Petition for Approval of Compromise was set for hearing on June 22, 2025. At the request of the moving party, the matter was continued to August 10, 2026. See Order entered June 22, 2026.

Analysis

The Petition for Approval of Compromise is unopposed. The Court has considered the verified Petition for Approval of Compromise.

The proposed terms indicate \$6,000 in attorneys' fees and expenses of \$2,716.60 paid out of the Claimant's share, totaling \$8,716.60 and leaving a balance of \$6,283.40 for the Claimant out of the \$15,000 in settlement funds earmarked for the Claimant. The \$6,000 attorneys' fees represents 40% of Claimant's recovery based on contingency fee arrangement. The Petition for Approval of Compromise indicates that "[t]he money will be held by Sandra Jordan for the benefit of Keith Jordan."

Aside from the two issues discussed below, the Court concludes the proposed terms are just and reasonable.

As set forth in the tentative ruling for the prior court hearing date, the Court is concerned about the 50% split of the total expenses (\$5,433.20) given the non-equal split of the settlement proceeds. The Court is also concerned about what safeguards will be put in place to ensure that the proceeds will be used for benefit of Claimant.

No further filings have been made addressing the above issues. No supplemental or amended pleadings have been filed.

Disposition

The Court finds and rules as follows:

1. The Petition for Approval of Compromise is DENIED, without prejudice to resubmission once the above issues are addressed.
2. The Court shall issue the order after hearing.

5. 9:00 AM CASE NUMBER: C24-01160
CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
BIFURCATE TRIAL
FILED BY: INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
TENTATIVE RULING:

Defendant International Church of the Foursquare Gospel (“International Church”) filed a Motion to Bifurcate Discovery on May 1, 2026 (the “Motion to Bifurcate Discovery”). The Motion to Bifurcate Discovery was set for hearing on August 10, 2026. The motion is opposed.

Background

International Church seeks an order “bifurcating discovery in this action, such that further discovery is limited to the ministerial exception under the First Amendment,...” See Notice of Motion filed May 1, 2026.

Plaintiff Denea Marhx (“Plaintiff”) filed an opposition on July 28, 2026, including an opposition declaration.

Analysis

Since the filing of this motion, the Court has considered and denied International Church’s a motion for summary judgment. See Minute Order dated July 28, 2026. The Court addressed and rejected the International Church’s contentions that it was entitled to summary judgment as a matter of law that the Plaintiff as an employee within the scope of the ministerial exception. It found triable issues of fact on that issue.

Accordingly, the Court is not going to dispose of this action and the claims at issue before trial solely on the grounds of the purported ministerial exception. Therefore, the Court does not conclude that it would be appropriate or justified to divide the discovery into the “phases” as International Church proposes by this motion (the first proposed phase being discovery solely as to International Church’s affirmative defense that the ministerial exception bars Plaintiff’s employment claims).

Disposition

The Court further finds and orders as follows:

1. The Motion to Bifurcate Discovery is DENIED.
2. The moving party shall prepare the order after hearing.

6. 9:00 AM CASE NUMBER: C25-00882

CASE NAME: ANGELINA RUBIO VS. JOEL CASTANEDA

RE MOTION TO BE RELIEVED AS COUNSEL

FILED BY: COUNSEL FOR RUBIO, ANGELINA

TENTATIVE RULING:

Giorgio Cassandra and Lina M. McGurk of BD&J, PC (“Counsel”) filed a Motion to be Relieved as Counsel on July 2, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Angelina Rubio (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship, including as a result of a failure to communicate and cooperate with Counsel. See Declaration filed July 2, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

7. 9:00 AM CASE NUMBER: C25-03263

CASE NAME: LILIA MENDOZA VARGAS VS. ALEX HERNANDEZ

STRIKE PLTFS PUNITIVE DAMAGES AND ATTORNEY FEES CLAIMS

FILED BY: HERNANDEZ, ALEX ANTHONY

TENTATIVE RULING:

Defendants Testex, Inc. and Alex Anthony Hernandez (“Defendants”) filed a Motion to Strike on March 27, 2026 (the “Motion to Strike”) regarding the Complaint filed by plaintiff Lilia Mendoza Vargas (“Plaintiff”). The Motion to Strike was set for hearing on August 10, 2026. The motion is unopposed.

Background

Defendants move to strike certain portions of the Complaint, the prayers for punitive damages and for an award of attorneys’ fees.

No opposition has been filed to the Motion to Strike.

Analysis

1. Punitive Damages

Defendants seek to strike certain portions of the Complaint praying for punitive damages, contending that the allegations regarding punitive damages are insufficient.

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b). The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. Code Civ. Proc. § 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782. An “irrelevant” matter includes allegations not essential to the claim or defense, as well as allegations “neither pertinent to nor supported by an otherwise sufficient claim or defense.” Code Civ. Proc. § 431.10(b).

To support punitive damages, the complaint must allege the ultimate facts of the defendant’s oppression, fraud or malice. *Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civ. Code § 3294. “*Animus malus* or evil motive, then, is the central element of the malice which justifies an exemplary award.” *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 30. “Oppression” means subjecting a person to cruel and unjust hardship in conscious disregard of his rights. *Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 511.

The crux of the allegations are that defendant Alex Anthony Hernandez negligently operated a motor vehicle under the influence in a manner constituting “despicable conduct” and causing injury to Plaintiff. See Complaint, ¶¶11 and 12.

Other than the perfunctory reference to “despicable conduct” in a few of the allegations, there are no detailed allegations of facts that would underpin a demand for punitive damages.

A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. *Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63. Alleging an intentional tort alone is not enough to support a claim for punitive damages: “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166, citing *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29. Conclusory allegations parroting the language of the statute are not enough for a punitive damages claim to survive a motion to strike. *Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963 (“Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations.”).

2. Attorneys’ Fees

As a general rule, each party to litigation must bear its own attorney fees, unless otherwise provided by statute or contract. *Hyduke’s Valley Motors v. Lobel Financial Corp.* (2010) 189 Cal.App.4th 430, 434. Thus, attorneys’ fees are generally not recoverable in a tort action unless allowable by statute or some other exception to the general rule, such as in the case of the “tort of another” doctrine. See *Guinnane Construction Co., Inc. v. Chess* (2026) 119 Cal. App. 5th 689, 698.

No basis is alleged for recovery of attorneys’ fees in this tort action.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike is GRANTED. The prayers for punitive damages and for an award of

attorneys' fees in the operative Complaint are deemed STRICKEN.

2. The moving party shall prepare the proposed order after hearing.

8. 9:00 AM CASE NUMBER: C25-03542

CASE NAME: DEMETRIA JOHNSON VS. SONIC WALNUT CREEK M INC

TO SET ASIDE DEFENDANT SONIC WALNUT CREEK M, INC., DBA MERCEDES-BENZ OF WALNUT CREEK AND LONG BAO NGOS DEFAULT

FILED BY: SONIC WALNUT CREEK M INC

TENTATIVE RULING:

Before the Court is Defendants Sonic Walnut Creek M, Inc. dba Mercedes-Benz of Walnut Creek ("Sonic") and Long Bao Ngo's Motion to Set Aside Defaults.

Procedural Background

Plaintiff filed the Complaint on December 5, 2025. A Proof of Service of Summons was filed on March 2, 2026, indicating that Defendant Ngo was personally served on February 4, 2026. A second Proof of Service of Summons was filed on March 16, 2026, indicating that Sonic was served by personal service on February 6, 2026. Thereafter, on March 16, 2026, Plaintiff sought and default was entered against both Defendants.

Defendants filed the instant motion to set aside on April 23, 2026.

Legal Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*) Defendants move under the mandatory provision.

The 'mandatory' provision, which Defendants rely upon, relates to times when an attorney admits fault in causing the default. This provision is set forth in the later portion of the statute:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any ... resulting default [or default judgment] ... entered against his or her client...." (Code Civ. Proc. § 473, subd. (b).)

Analysis

Defendants filed their motion to set aside approximately six weeks after the defaults were entered. Thus, Defendants' motion is timely.

Along with the motion, Defendants filed a declaration from counsel indicating that due to a "calendaring error and workload-related oversight on [his] part, [he] failed to file a responsive pleading by" the appropriate deadlines. (Robinett Decl. ¶ 3.) He did not notice the error until April 16, while preparing to have an associate attorney attend the initial Case Management Conference. (*Ibid.*) He also immediately drafted an answer and attempted to have it filed. (*Ibid.*)

Counsel then attempted more than once to contact Plaintiff to obtain a stipulation to set aside the default so that the matter could proceed without need for motion practice. (¶ 4.) Plaintiff did not respond to any of these efforts. (*Ibid.*)

Plaintiff argues that "relief under section 473 is not automatic" and that Defendants bear the "burden of demonstrating both diligence and excusable neglect." (Opp. at 3:9-10.) Plaintiff is mistaken on all counts given that Defendants are moving under the mandatory provision of section 473. To begin with, when a motion for relief is based on attorney fault, there is no need to "show diligence in seeking relief, [instead the] motion is timely if filed within six months of entry of the default judgment or dismissal." (*Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1147 citing *Milton v. Perceptual Development Corp.* (1997) 53 Cal.App4th 861, 868.) The motion was filed well within the six-month deadline.

As to the need to show excusable neglect, under the "traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney's neglect must show that the neglect was *excusable*." (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) An entirely different standard exists under the mandatory relief provisions in section 473. "These *require* the court to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*." (*Ibid.*) Thus, Defendant is not required to show excusable neglect and the Court must grant relief if the attorney admits neglect.

Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439-440 "[T]he text of section 473 subdivision (b) does not require an explanation of reasons as a prerequisite to mandatory relief.") Accordingly, 473(b) "at most demand[s] an attorney's candid, full, and straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors." (*Ibid.*) "In other words, the purpose of the mandatory relief provision under section 473, subdivision (b) is achieved by focusing on *who* is to blame, *not why*." (*Id.* at 439 italics in original)

The declaration submitted by Defendants' counsel is sufficient as a "candid, full, and straightforward acknowledgment of his or her error." (*Id.* at 441.) He clearly made a mistake by failing to properly calendar the date for filing any responsive pleading. Upon realizing his error, he attempted to work with Plaintiff to remedy the error. Receiving no response from Plaintiff he promptly filed the instant motion.

Conclusion

Defendants' motion to set aside the defaults is **GRANTED**. Defendants shall file their responsive pleading within 10 days of notice of entry of this order.

9. 9:00 AM CASE NUMBER: C26-00258
CASE NAME: JESSICA JACKSON VS. 24 HOUR FITNESS USA, LLC
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: 24 HOUR FITNESS USA, LLC

TENTATIVE RULING:

Defendant First Class Properties, LLC's Motion to Strike Portions of Plaintiff's Complaint is **GRANTED** in part and **DENIED** in part as follows:

The motion to strike Paragraphs 10(f) and 14a(2) is **GRANTED** with leave to amend. Plaintiff has 15 days from notice of entry of this order to file an amended complaint alleging facts to show malice under Civil Code section 3294(c) and corporate liability under Civil Code section 3294(b). If Plaintiff cannot meet this deadline but later discovers facts supporting a punitive damages claim through discovery, she may file a motion for leave to amend the complaint.

The motion to strike Paragraphs L-1 and GN-1(3), which contain allegations of gross negligence, is **DENIED**.

The motion to strike Paragraph GN-1(5), which contains allegations of statutory violations, is **DENIED**.

Defendant shall prepare the order and file and serve notice of entry of order.

I. Background

This case arises from a slip-and-fall incident occurring on January 23, 2024, at a 24 Hour Fitness facility in Brentwood, California. Plaintiff Jessica Jackson was an invited guest at the facility when she slipped and fell on liquid that had accumulated on the floor as a result of an unaddressed leak, sustaining injuries.

According to the complaint, Plaintiff "was lawfully on Defendants' premises, located at or near 5961 Lone Tree Way, Brentwood, CA 94513, when suddenly and without notice, Plaintiff slipped and fell due to a leak that had accumulated on the floor which presented a dangerous condition." Plaintiff alleges that "Defendants breached their duty to Plaintiff by failing to address, alleviate, remove and/or remedy the dangerous condition and/or activity on Defendants' premises, and by failing to warn people, including Plaintiff, of the presence of such a dangerous condition, despite having adequate time and notice to do so." Plaintiff characterizes this conduct as constituting "a want of even scant care and an extreme departure from the ordinary standard of conduct" and "such outrageous lack of care" in the context of the situation. (Complaint, Prem. L-1.)

Defendants are 24 Hour Fitness USA, LLC, 24 Hour Fitness, 24 Hour Fitness Holdings LLC, All Day AcquisitionCo LLC, and First Class Properties, LLC, along with fictitiously named parties. Plaintiff alleges that the various corporate entities are agents, owners, managers, partners, joint venturers, employers, and successors in interest to one another.

Plaintiff's January 27, 2026 complaint asserts causes of action for premises liability and general negligence. The premises liability cause of action includes counts for negligence and willful failure to warn under Civil Code section 846. Within these causes of action, Plaintiff alleges gross negligence and seeks punitive damages under Civil Code section 3294. She also alleges that the defendants violated the Americans with Disabilities Act, California Health and Safety Codes, building codes, and various ordinances.

Defendant First Class Properties, LLC now moves to strike the following portions of the complaint: (1) Paragraph 10(f), alleging Defendants acted with oppression, fraud, and malice under Civil Code § 3294; (2) Paragraph 14 a.(2), the prayer for punitive damages; (3) Paragraphs L-1 and GN-1(3), asserting gross negligence; and (4) Paragraph GN-1(5), alleging violations of the ADA, California Health & Safety Codes, building codes, and ordinances.

II. Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc. § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436, subds. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

III. Discussion

A. Meet and Confer

Before filing a motion to strike, the demurring or moving party shall meet and confer with the party who has filed the pleading and shall file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 435.5, subd. (a).)

Defense counsel complied, or substantially complied, with the meet and confer requirement before filing this motion. (See Declaration of Demurring Party filed on March 3, 2026.)

B. Motion to Strike

1. Punitive Damages

Under Civil Code section 3294, "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the Defendant has been guilty of oppression, fraud, or malice, the Plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the Defendant." (Cal. Civ. Code § 3294(a).) Malice is defined as "conduct which is intended by the Defendant to cause injury to the Plaintiff or despicable

conduct which is carried on by the Defendant with a willful and conscious disregard of the rights or safety of others." (*Id.* § 3294(c)(1).) "Used in its ordinary sense, the adjective 'despicable' is a powerful term that refers to circumstances that are 'base,' 'vile,' or 'contemptible.' [Citation.] As amended to include this word, the statute plainly indicates that absent an intent to injure the Plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the Plaintiffs' interests. The additional component of 'despicable conduct' must be found." (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

"Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees." (*Cruz v. Homebase* (2000) 83 Cal. App. 4th 160, 167.) Section 3294(b) provides that an employer cannot be held liable for employee acts unless "the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Cal. Civ. Code § 3294(b).) "The advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (*Id.*)

Since Plaintiff does not allege intent to injure, she must plead despicable conduct. Her allegation that Defendant failed to address and warn of a dangerous condition describes ordinary negligence in facility maintenance and safety protocols, conduct that is neither base, vile, nor contemptible. Additionally required for corporate liability is an allegation that an officer, director, or managing agent had advance knowledge of the hazard and employed wrongful conduct with conscious disregard for safety, or authorized or ratified such conduct, or was personally guilty of oppression, fraud, or malice. The complaint contains no non-conclusory allegations to show corporate liability under these standards.

The motion to strike Paragraphs 10(f) and 14 a.(2) is GRANTED with leave to amend.

2. Allegations of Gross Negligence

Defendant moves to strike Paragraphs L-1 and GN-1(3), which contain allegations that Defendant's conduct constitutes a "want of even scant care" and an "extreme departure from the ordinary standard of conduct." Courts may strike allegations that are "not essential to the statement of a claim or defense," or "neither pertinent to nor supported by an otherwise sufficient claim or defense." (Code Civ. Proc. § 431.10(b).)

Though gross negligence is not a separate cause of action, allegations of gross negligence are material to Plaintiff's negligence claim, particularly because they may defeat an affirmative defense. (See *Anderson v. Fitness Internat., LLC* (2016) 4 Cal.App.5th 867, 880 [shifting burden on summary judgment when "a complaint alleges facts demonstrating gross negligence in anticipation of a release"].)

"Gross negligence is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages. [Citation.] However, to set forth a claim for 'gross negligence' the Plaintiff must allege extreme conduct on the part of the Defendant." (*Rosencrans v. Dover Images, Ltd.* (2011)

192 Cal.App.4th 1072, 1082.) "Gross negligence" requires "either a 'want of even scant care' or 'an extreme departure from the ordinary standard of conduct.'" (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754.)

Defendant argues that Plaintiff's allegations are conclusory and lack sufficient factual support for gross negligence. The Court disagrees. It is well established that negligence may be pleaded in general terms. (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 154-55.) Defendant does not cite any authority establishing that gross negligence requires greater pleading particularity than ordinary negligence. If Defendant wants more particular information regarding Plaintiff's allegations of gross negligence, it may obtain that information through discovery

The motion to strike Paragraphs L-1 and GN-1(3) is DENIED.

3. Allegations of Statutory Violations

Defendant moves to strike Paragraph GN-1(5), which states "Defendants were subject to and violated ADA, California Health & Safety Codes, building codes, and/or ordinances and these violations actually and legally caused Plaintiff's damages, the occurrence resulting in the damages was of a nature that the regulation was designed to prevent and Plaintiff was among the class of persons for whose protection the regulation was adopted." Defendant argues the pleading is defective because Plaintiff has failed to specify which particular statutes were violated and has not alleged any facts showing that any specific statute applies to her causes of action. Without identification of the precise statutory provisions, Defendant claims it cannot know the nature of the accusations against it or determine whether Plaintiff falls within the class of persons the alleged statutes are intended to protect.

Plaintiff responds that the allegations are proper because California's notice pleading standard requires only that a complaint set forth the essential facts with sufficient clarity to notify Defendant of the general nature of the claim, and specific code sections need not be cited at the pleading stage. Plaintiff argues she has properly invoked the doctrine of negligence per se under Evidence Code section 669 to establish the standard of care applicable to Defendant's operation of the gym.

The Court finds that Paragraph GN-1(5) satisfies notice pleading requirements by alleging that Defendant violated applicable safety statutes designed to prevent slipping hazards for commercial invitees. Plaintiff alleges that "the occurrence resulting in the damages was of a nature that the regulation was designed to prevent and Plaintiff was among the class of persons for whose protection the regulation was adopted." This allegation gives Defendant adequate notice of Plaintiff's general claim without requiring pleading of evidentiary detail at this early stage of the litigation. If Defendant remains uncertain as to the specific statutory provisions, it may obtain that information through discovery.

The motion to strike Paragraph GN-1(5) is DENIED.

10. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
MOTION TO COMPEL ARBITRATION
FILED BY: HYUNDAI MOTOR AMERICA
TENTATIVE RULING:

The unopposed motion to compel arbitration is **GRANTED**. The Court will issue the proposed order after hearing submitted with the moving papers.

11. 9:00 AM CASE NUMBER: C26-01362
CASE NAME: JINLIANG LI VS. FIDELITY BROKERAGE SERVICES LLC
MOTION TO COMPEL ARBITRATION
FILED BY: FIDELITY BROKERAGE SERVICES LLC
TENTATIVE RULING:

The unopposed motion to compel arbitration is **GRANTED**. The Court will issue the proposed order after hearing submitted with the moving papers.

12. 9:00 AM CASE NUMBER: MSC08-02442
CASE NAME: PUTNAM LEASING COMPANY INC VS. RICARDO CHAVEZ
TO BE RELIEVED AS COUNSEL
FILED BY: PUTNAM LEASING COMPANY INC A CONNECTICUT CORPORATION
TENTATIVE RULING:

Herzlich & Blum, LLP, including attorneys Allan Herzlich and Jerome J. Blum (“Counsel”) filed a Motion to be Relieved as Counsel on April 3, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026.

Background

Counsel seeks to be relieved as attorneys for “Putnam Leasing Company I, LLC.” The Court notes that the name on the operative judgment is Putnam Leasing Company, Inc. The Court construes the motion as seeking to be relieved from representation from the plaintiff and judgment creditor in this case.

The supporting declaration filed by Counsel indicates that Counsel are both retiring and closing their practice. See Declaration filed April 3, 2026, ¶2. The client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit a revised proposed form of order reflecting the proper name of the client entity under which this case was prosecuted.

13. 9:00 AM CASE NUMBER: MSC21-00646
CASE NAME: GONZALEZ VS KEADING FAMILY TRUST
TO DISMISS (CCP 583.310, 583.360)
FILED BY: NORTH AMERICAN TITLE INSURANCECOMPANY, A FOREIGN CORPORATION
TENTATIVE RULING:

Before the Court is a Code of Civil Procedure section 583.310 et seq. motion to dismiss for failure to bring this matter to trial within five years ("Motion"), filed by defendant North American Title Company ("NAT"). Joinders have been filed by defendants Hilja Keading (individually and as trustee of the Keading Family Trust), NRT West dba Coldwell Banker, and Margaret M. Lin. The joinders are approved.

For the reasons discussed below, the Court **GRANTS** North American Title Company's motion to dismiss and the joinders therein by the other defendants.

Legal Standard for CCP § 583.310 Motion to Dismiss

"An action shall be brought to trial within five years after the action is commenced against the defendant." (Code Civ. Proc., § 583.310.) In computing the time within which an action must be brought to trial, certain time periods are excluded, including when: (1) jurisdiction of the court was suspended; (2) prosecution or trial was stayed or enjoined; or (3) bringing the action to trial, for any other reason, was impossible, impracticable, or futile. (Code Civ. Proc. § 583.340.)

"Because the purpose of the dismissal statute is to prevent avoidable delay, section 583.340, subdivision (c) makes allowance for circumstances beyond the plaintiff's control, in which moving the case to trial is impracticable for all practical purposes." (*Seto v. Szeto* (2022) 86 Cal.App.5th 76, 85, citations omitted.) In determining whether tolling exceptions apply under subdivision (c), the "trial court must consider all the circumstances of the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves." (*Id.* at 86, citation omitted.) The "trial court has discretion to determine whether that exception applies...." (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The appropriate analysis focuses "on the 'justifiability' of the plaintiff's reason for not bringing the case to trial, rather than on the defendant's complicity in the delay." (*Brunzell Constr. Co. v. Wagner* (1970) 2 Cal.3d 545, 555; see also *Tejada v. Blas* (1987) 196 Cal.App.3d 1335, 1339-1340 [a critical factor in applying tolling exceptions to a given factual situation is whether the plaintiff exercised 'reasonable diligence' in prosecuting his or her case]; *Westinghouse Elec. Corp. v. Superior Court* (1983) 143 Cal.App.3d 95, 99 ["had plaintiff been the dilatory party, mere impracticability is not an excuse, since the impracticability arises from plaintiff's own fault"].) The plaintiff bears the burden of proving that the circumstances warrant application of the exception. (*Seto, supra*, 86 Cal.App.5th at 86.)

"Section 538.340 is construed liberally, consistent with the policy favoring trial on the merits." (*Tanguilig v. Neiman Marcus Group, Inc.* (2018) 22 Cal.App.5th 313, 323 citing *Dowling v. Farmers Ins. Exchange* (2012) 208 Cal.App.4th 685, 693.)

Background

Plaintiffs Louie Gonzalez and Francyn Molina (“Plaintiffs”) filed this lawsuit on April 2, 2021, against: (1) the Keading Family Trust [“Trust”]; (2) Trustee Hilja Keading [“Keading”]; (3) NRT West, Inc., doing business as Coldwell Banker [“Coldwell Banker”]; (4) Margaret Lin [“Lin”]; and (5) North American Title Insurance Company [“NAT”] (collectively, “Defendants”). (Second Amended Complaint [“SAC”], pp. 1-3.)

Plaintiffs assert claims for: (1) intentional misrepresentation as to Coldwell Banker, Lin, and Keading; (2) negligent misrepresentation as to Coldwell Banker, Lin, and Keading; (3) breach of contract as to Keading; and (4) breach of insurance agreement as to NAT.

Plaintiffs allege that on April 17, 2019, they made a written offer on residential property located at 60 Laurel Lane, El Sobrante, California (the “Property”). (SAC, ¶¶ 10, 20.) On that date, extensive and ongoing litigation involving the Property had been pending for over three years that involved Keading’s brother Kenton Keading, who had various claims against the Property and was a beneficiary of the Keading Family Trust. (*Id.* at ¶¶ 17, 20, the “Litigation”.) Kenton Keading had been declared a vexatious litigant and Keading had gotten a restraining order preventing him from interfering with the Property. (*Ibid.*) The litigation was quite active and as of the close of escrow, not less than four appeals had been made by him asserting various interests in the Property and claims against the ownership and occupancy of the Property. (*Id.* at ¶ 17.) A filing was even made the day before Plaintiff made their written offer. (*Id.* at ¶ 20.) Despite this, Coldwell Banker, Lin, and Keading made a disclosure regarding the Property that the listing agent was informed that Keading’s brother was evicted from the Property prior to the listing of it for sale and that Keading is the sole appointed trustee for the sale of the Property and that there were no past, present, pending, or threatened lawsuits, mediations, settlements, etc., or other court filings or governmental hearings affecting or relating to the Property. (*Id.* at ¶ 18.) Prior to the close of escrow, Kenton Keading has a lis pendens recorded in Contra Costa County asserting claims to the title to the Property. (*Id.* at ¶ 21.) Coldwell Banker, Lin, and Keading knew all this yet failed to disclose the Litigation and even made direct statements that there were no such issues. The claim of negligent misrepresentation against Coldwell Banker, Lin, and Keading is based on the same facts. (*Id.* at ¶¶ 34, 35.) The breach of contract against Keading is based on contractual duties to disclose what she allegedly did not disclose. (*Id.* at ¶¶ 36-44.) The breach of insurance agreement claim against NAT is based on NAT’s alleged failure to indemnify Plaintiffs from losses attributable to a defect in title. (*Id.* at ¶¶ 45-52.)

Plaintiffs seek damages in excess of \$1,000,000, interest, attorney fees, costs, and exemplary and punitive damages. (SAC, p. 14.)

Discussion

Code of Civil Procedure sections 583.310 and 583.340 (The Five-Year Rule)

Defendant’s Position

NAT argues in their moving papers that dismissal with prejudice is mandatory for failure to bring a case to trial within five years and that Plaintiffs commenced this action on April 2, 2021, and because it has not been brought to trial by April 2, 2026, it must be dismissed. (Motion MPA, p. 3.) NAT

argues that none of the limited exceptions apply to this matter and the parties have not agreed to any extension of the mandatory five-year deadline. (*Ibid.*) NAT points out that the trial court's jurisdiction was never suspended and the case was never stayed or enjoined. (*Ibid.*) NAT points out that in order to claim impossibility, impracticability, or futility to avoid the five-year deadline to bring an action to trial, the plaintiff must have acted with reasonable diligence in prosecuting the action and that the reasonable diligence is an indivisible part of the overall inquiry into whether a given circumstance made it so unreasonably difficult for plaintiff to bring an action to trial that the time period involved should be excluded from calculation of the five-year period. (*Id.* at p. 4.)

Plaintiff's Position

Plaintiffs argue that the five-year period was tolled under Code of Civil Procedure section 583.340, subdivision (c) from at least December 12, 2025, through April 17, 2026, due to the incapacitating illness of plaintiff. (Opposition, pp. 6-11.) Plaintiff Francyn Molina was hospitalized December 12, 2025, and was in hospitals or skilled nursing facilities until January 23, 2026. (Gonzalez Decl. ISO Opposition, ¶¶ 4-6.) However, she was unable to meaningfully participate in the Litigation until mid-April. (Webb Decl. ISO Opposition, ¶ 29.) Plaintiff argues that under Code of Civil Procedure section 583.350, that because the tolling lasted until less than six months remained of the five-year rule, they get an additional six months, which pushes the deadline until October 17, 2026. (*Id.* at p. 11.)

Plaintiffs argue that alternatively, Defendants conduct supports estoppel and waiver. (*Id.* at p. 12.) Plaintiffs cite *Tejada v. Blas* (1987) 196 Cal.App.3d 1335, 1341, as holding that estoppel applies where "statements or conduct ... lull[] the plaintiff into a false sense of security resulting in inaction, and there is reasonable reliance." (*Ibid.*) Plaintiffs argue that Defendants did this by filing case management statements before the January 7, 2026 case management conference that showed discovery was planned to last until June and July of 2026. (Opposition, p. 12.) There were also depositions that Plaintiffs noticed that defendants postponed until dates beyond the 5-year deadline. (*Id.* at p. 13.) For example, Keading proposed her deposition to be the week of April 20, and other defendant depositions were agreed to be calendared for April 22, April 23, and April 24, 2026. (*Ibid.*; Webb Decl. ISO Opposition, ¶ 14.) Plaintiffs ask the Court to deny the Motion and set the matter for trial. (Opposition, p. 15.)

NAT's Reply

NAT argues that Plaintiffs' failure to exercise reasonable diligence precludes them from claiming impracticability as Plaintiffs made no effort whatsoever to have the matter set for trial prior to the expiration of the five-year statutory period. (Reply, pp. 5-8.) NAT further argues that Ms. Molina's illness was not the cause of the failure to bring the matter to trial within five years because having an illness alone does not establish causation that would make it impracticable by itself and that a delay of a few months is already built into the 5-year deadline. (*Id.* at pp. 8-9.)

NAT argues that the cases Plaintiffs cite are distinguishable. (Reply, pp. 9-10.) In *Tamburina v. Combined Ins. Co. of America* (2007) 147 Cal.App.4th 323, a trial date was set and was continued multiple times by stipulation due to the plaintiff's illness and the final stipulation concerned the attorney's illness. (*Id.* at p. 331.) The court held that the stipulations were an agreement that the trial could not proceed due to the plaintiff's and attorney's health, and thus were sufficient to establish impracticability and causation. (*Id.* at p. 332.) In *Him v. Superior Court* (1986) 184

Cal.App.3d 35, NAT argues that the plaintiff's sole counsel was incapacitated by illness seven weeks prior to the deadline to bring the case to trial and the court ruled that the illness was the direct cause of the failure to timely request a trial date. (Reply, p. 10.)

Finally, NAT argues that Plaintiffs lump all the Defendants together as one in support of the argument that the five-year deadline is extended by waiver or estoppel and that Plaintiffs fail to identify conduct of NAT that could constitute a waiver of the five year deadline or that NAT should be estopped from enforcing it. (Reply, pp. 10, 11.) NAT argues that neither the fact that it did not mention the 5-year deadline in its CMC statement nor objecting to a deposition notice on 5 days' notice amounts to estoppel and cites *Seto v. Szeto* (2022) 86 Cal.App.5th 76, 98, for the rule that "a plaintiff has the duty to call the court's attention to the deadline" and *Jordan v. Superstar Sandcars* (2010) 182 Cal.App.4th 1416, 1423, for the proposition that "[a]ny ambiguity or confusion created by defense counsel mentioning his unavailability beyond the cutoff date could have been clarified by plaintiff's counsel, who was responsible for ensuring the case was tried before the period expired." (Reply, p. 10.)

Impracticability Exception to Five-Year Rule

Regarding Plaintiff's assertion of impracticability, the Court finds that Ms. Molina's hospitalization for cardiac arrest and unavailability from December 12, 2025 through approximately mid-April 2026 (Webb Decl. ISO Opposition, ¶ 29), does not provide Plaintiffs relief from the five-year rule. "The plaintiff bears the burden of proving that the circumstances warrant application of the ... exception." (*Seto v. Szeto* (2022) 86 Cal.App.5th 76, 86.) Here, missing from the declarations of Mr. Webb, Mr. Gonzalez, Ms. Molina, and Mr. Riddell, is any indication of when Plaintiffs ever told their counsel that Ms. Molina was hospitalized for cardiac arrest and unavailable for trial. The Plaintiffs have the burden of showing impracticability, and without providing any evidence of when Plaintiffs' attorneys even found out about the cardiac arrest, the Court cannot find that they have met their burden. The Webb declaration looks like it should contain this information in either paragraph 5 or 8, but it does not. The declaration of Mr. Gonzalez looks like this information should be included in paragraph 10, but it is not. The declaration of Ms. Molina looks like this information should be included in paragraphs 12 or 13, but it is not. The Riddell declaration looks like this information should be included in paragraph 4, but it is not. There is no credible showing that the described illness had any impact on the conduct of the litigation and the ability to bring it to trial.

Ms. Molina suffered cardiac arrest and went into the hospital on December 12, 2025, and Plaintiffs' CMC statement for the January 7, 2026 case management conference was filed on December 15, 2025, and the CMC statement does not say anything about the hospitalization of Ms. Molina. The "other issues" section only states that Plaintiffs believe depositions need to be taken for a meaningful mediation to take place. Further, there was no filing subsequent to the December 15, 2025 filing that informed the court that one of the plaintiffs had been hospitalized or attempted to extend the trial setting conference due to that. Plaintiffs have produced no documents from prior to NAT's filing of the Motion that show they were aware that Ms. Molina was hospitalized and unavailable and they have also not submitted any evidence that they were aware of her hospitalization and illness prior to the Motion being filed in April.

The analysis above distinguishes this case from *Tamburina v. Combined Ins. Co. of America* (2007) 147 Cal.App.4th 323, which is the only case Plaintiffs cite that involves the illness of a plaintiff resulting in

a tolling of the five-year rule. In that case, there was a single plaintiff suing his employer for “age discrimination and tortious interference with stock option contracts.” (*Id.* at p. 327.) It was not the plaintiffs’ illness alone that justified the Court of Appeal in reversing the trial court on its dismissal, it was the fact that there were *multiple stipulations* entered into with the other party as explained by the court in that matter:

These stipulations involved: (1) a serious, specified and monitored illness involving Tamburina in which medical opinion concluded that he could not attend trial; (2) a repeated and uninterrupted continuance of the trial setting conference and/or the trial date that stretched on for nearly a year based on this illness; and (3) no evidence to dispute them. Given this context of stipulation, it cannot be said that Tamburina took unfair advantage of Combined’s mere professional courtesies. Combined was made well aware of the seriousness, lengthy duration and trial date juxtaposition of Tamburina’s illness (and that of his trial counsel). Combined entered the stipulations with its eyes open; it could have specified, somewhere along this lengthy line, that one or more of the stipulations would not affect the running of the five-year trial deadline.

(*Tamburina v. Combined Ins. Co. of America* (2007) 147 Cal.App.4th 323, 333.)

Here, as stated above, despite Ms. Molina suffering a serious health condition on December 12, 2025, several days before the filing of the CMC statement, and nearly a month before the CMC/Trial Setting Conference was to be held, Plaintiffs’ counsel never advised the other parties or the Court of this illness and incapacity and also did not seek any continuation of the trial setting conference.

It is also worth noting that although Mr. Riddell states that he mis-calendared the January 7, 2026 CMC/Trial Setting Hearing as February 11, 2026 (Riddell Decl. ISO Opposition, ¶ 4), the CMC statement signed and electronically served by Mr. Riddell himself on December 15, 2025, correctly identifies the CMC hearing to be January 7, 2026, and further states that both him and Mr. Webb would appear by telephone. Mr. Riddell states that he found out he missed the CMC/Trial Setting Conference on January 12, 2026, and that he “then took the following steps: I now schedule court events in three separate calendars. . .” (*Id.* at ¶ 5.) In other words, he did nothing to rectify the issue of him missing the CMC/Trial Setting Conference. He further states that “[t]he missed appearance did not interrupt plaintiffs’ prosecution of this case,” because he and co-counsel served eight deposition notices. (*Id.* at ¶ 6.)

Despite learning, by his own admission, that counsel had missed the CMC and trial setting “on or around January 12, 2026,” counsel failed to immediately seek relief and a trial setting before the five-year deadline. Counsel could, and should, have presented an ex parte application to raise the issue of getting a trial date set before April 2, 2026. That did not happen. In fact, the docket reflects no action, no filings of any kind, by Plaintiffs before the present motion was filed by the other side several days after the deadline passed, on April 6, 2026.

Notably, the parties were ordered at the September 24, 2025 case management conference to “meet and confer re: trial dates in 2026.” Here, there has been no evidence presented to the Court that this was done. Plaintiffs’ counsel have not submitted any correspondence from them to any defendants

about any proposed trial dates in 2026. This goes towards diligence. “Reasonable diligence places on a plaintiff the affirmative duty to make every reasonable effort to bring a case to trial within five years, even during the last month of its statutory life.” (*Jordan v. Superstar Sandcars* (2010) 182 Cal.App.4th 1416, 1420.)

It is unclear how an illness of a party that their counsel is not aware of would result in the tolling of the five-year rule. “Since the judicial construction of the 'impossible, impracticable or futile' exception to section 583, the courts have applied it on a case-by-case basis to prevent patently unjust consequences where the failure to comply with the statute **is not attributable to fault on the part of the plaintiff or his counsel.**” (*Ferk v. County of Lake* (1988) 205 Cal.App.3d 268, 277, emphasis added.) Here, it appears to this Court that the failure to comply with the five-year rule is attributable to Plaintiffs’ counsel, not Ms. Molina’s hospitalization.

Estoppel and Waiver

NAT correctly points out that waiver of the five-year rule involves a defendant going to trial without raising the issue. (*Southern Pacific Co. v. Seaboard Mills* (1962) 207 Cal.App.2d 97, 104 [“Obviously, a defendant waives objection to antecedent delay by going to trial without moving to dismiss.”]; *Butler v. Hathcoat* (1983) 146 Cal.App.3d 834, 839 [“Obviously, a defendant waives objection to antecedent delay by going to trial without moving to dismiss. [Citation.] The mandatory five-year provision of Code of Civil Procedure, section 583, applying prior to trial can have no application.”].)

Regarding estoppel, Plaintiffs cite *Tejada v. Blas* (1987) 196 Cal.App.3d 1335, 1341, as holding that estoppel applies where “statements or conduct ... lul[] the plaintiff into a false sense of security resulting in inaction, and there is reasonable reliance.” (*Ibid.*) Plaintiffs argue that Defendants did this by filing case management statements before the January 7, 2026 case management conference that showed discovery was planned to last until June and July of 2026. (Opposition, p. 12.) There were also depositions that Plaintiffs noticed that defendants postponed until dates beyond the 5-year deadline. (*Id.* at p. 13.) Plaintiffs argue this has particular force where defendant moved proceedings past the deadline. (*Ibid.*)

The Court finds the conduct here insufficient to invoke estoppel. In *Woley v. Turkus* (1958) 51 Cal.2d 402, cited by Plaintiffs as support, estoppel was based on the circumstances below:

On December 9, 1955, the plaintiff filed a memorandum to set and a notice of motion to advance the cause for trial. The supporting affidavit pointed out that the cause of action would be barred by section 583 unless the trial was commenced before December 28, 1955, which would be the expiration of the five-year period. At the hearing on the motion to advance the cause for trial the defendant requested a continuance on the ground that nothing had been done in the case for almost five years and that the 12 days’ notice was inadequate for trial preparation. The request was made with the representation by the defendant in open court that the plaintiff was not to be prejudiced by such a continuance.

(*Woley v. Turkus* (1958) 51 Cal.2d 402, 404.)

When the defendant in *Woley* eventually filed a motion to dismiss, his representation in open court estopped him from seeking dismissal. (*Id.* at p. 409.) The facts here are more similar to *Jordan v. Superstar Sandcars* (2010) 182 Cal.App.4th 1416, where the plaintiffs argued that the defendants were “estopped from relying on the five-year dismissal statute, section 583.310, because counsel for defendants submitted a declaration stating he was not available for trial until after September 2008, leading plaintiffs to believe defendants did not object to trying the case after the five-year trial deadline of June 6, 2008.” (*Id.* at p. 1422.) The court “rejected the doctrine of equitable estoppel since plaintiffs were aware the five-year trial period ran on June 6, 2008, and it was not reasonable to assume defendants were willing to waive the deadline.” (*Id.* at p. 1423.) “Any ambiguity or confusion created by defense counsel mentioning his unavailability beyond the cutoff date could have been clarified by plaintiffs’ counsel, who was responsible for ensuring the case was tried before the five-year period expired. Plaintiffs have shown no conduct on the part of defendants that would have lulled plaintiffs into a reasonable false sense of security.” (*Ibid.*) Here, similarly, representations of defendants regarding discovery timelines or deposition dates should have triggered Plaintiffs’ counsel to clarify or seek a stipulation to try the case beyond the five-year mark if the defendants expressed a desire to perform something beyond the five-year deadline.

Ruling

Based on the analysis above, the Court **GRANTS** North American Title Company’s Motion to Dismiss and the joinders therein. Moving party to prepare the order after hearing. One consolidated order shall be prepared for the lead motion and the joinders.

14. 9:00 AM CASE NUMBER: MSC21-00646
CASE NAME: GONZALEZ VS KEADING FAMILY TRUST
JOINDER IN DEFENDANT NORTH AMERICAN TITLE INSURANCE COMPANY'S MOTION TO DISMISS
FILED BY: KEADING, HILJA
TENTATIVE RULING:

See LINE 13, above.

15. 9:00 AM CASE NUMBER: MSC21-00646
CASE NAME: GONZALEZ VS KEADING FAMILY TRUST
JOINDER TO NORTH AMERICAN TITLE INSURANCE COMPANY'S MOTION TO DISMISS
FILED BY: NRT WEST, INC.
TENTATIVE RULING:

See LINE 13, above.

16. 9:00 AM CASE NUMBER: MSC21-01176
CASE NAME: VAUGHNS VS MUSUKULA
BE RELIEVED AS COUNSEL FOR PLTF THOMAS VAUGHNS
FILED BY: VAUGHNS, THOMAS
TENTATIVE RULING:

Ann Harding Battin (“Counsel”) filed a Motion to be Relieved as Counsel on July 9, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Thomas Vaughns (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship, including as a result of a failure to communicate with Counsel. See Declaration filed July 9, 2026, ¶12. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

17. 9:00 AM CASE NUMBER: N26-0464
CASE NAME: PETITION OF:WORLDWIDE LENDERS. INC.
DEPOSIT OF SURPLUS
FILED BY:
TENTATIVE RULING:

The matter is on calendar in connection with Petitioner Worldwide Lenders, Inc.’s (“Petitioner”) Petition and Declaration regarding Unresolved Claims and Deposit of Undistributed Surplus Proceeds of Trustee’s Sale filed on March 11, 2026 (the “Petition”). The matter was set for hearing on August 10, 2026.

Background

As set forth in the Petition, the sum of \$94,533.97 remained undistributed, after deduction of fees and expenses, following a trustee’s sale held on or about September 10, 2025. That amount was ordered deposited with the Clerk of the Court (the “Deposited Funds”). See Order entered May 8, 2026 (the “Order for Deposit of Surplus Funds”).

On May 11, 2026, a Notice of Completion of Deposit and Discharge was filed with the Court which reflects the deposit of \$94,533.97 with the Court.

On May 26, 2026, claimant Asset Recovery, Inc. (“Asset Recovery”) filed a claim to the Deposited Funds, along with several supporting papers. Asset Recovery contends that the former owner of the subject property, Gregory J. Broussard (the “Former Owner”) assigned his rights to any surplus proceeds from

the trustee's sale to Asset Recovery.

On June 1, 2026, the Former Owner filed a claim as to the Deposited Funds, along with several supporting papers. A supplemental declaration was filed by the Former Owner on June 22, 2026.

Disposition

The Court orders as follows:

1. **PARTIES TO APPEAR** to address procedural process for resolution of competing claims.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C24-01830
CASE NAME: SADIE BADUE VS. FEDEX CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL AUDIO RECORDING OF DEFENSE MENTAL EXAM OF PLAINTIFF & REQUEST FOR SANCTIONS**
FILED BY: BADUE, SADIE
TENTATIVE RULING:

Parties to Appear.

19. 9:01 AM CASE NUMBER: C24-01830
CASE NAME: SADIE BADUE VS. FEDEX CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANTS' FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS AND FOR SANCTIONS**
FILED BY: BADUE, SADIE
TENTATIVE RULING:

Parties to Appear.

20. 9:01 AM CASE NUMBER: C24-01830
CASE NAME: SADIE BADUE VS. FEDEX CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITIONS OF PMQ OF DEFENDANT FEDEX CORPORATION, FEDEX GROUND PACKAGE SYSTEM, INC., AND C&S TIKI ENTERPRISES, INC.**
FILED BY: BADUE, SADIE
TENTATIVE RULING:

Parties to Appear.

21. 9:01 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION**
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

Parties to Appear.

22. 9:01 AM CASE NUMBER: C25-02210
CASE NAME: HERMILIA VARGAS VS. JOHN DOE
***HEARING ON MOTION FOR DISCOVERY QUASH DEPO SUBPOENA FOR PROD OF BUSINESS RECORDS**
FILED BY: VARGAS, HERMILIA
TENTATIVE RULING:

Plaintiff Hermila Vargas ("Plaintiff") filed a motion to quash various subpoenas on April 29, 2026 (the "Motion to Quash"). The Motion to Quash was set for hearing on August 10, 2026. The motion is opposed.

Background

The Motion to Quash seeks an order quashing twelve separate subpoenas (the "Subpoenas") directed to various of Plaintiff's medical providers as well as seeking workers' compensation related records (the "Records"). See Motion to Quash, p. 2.

Analysis

Although it appears that copies of the subject Subpoenas were attached as part of the opposition papers, it was the moving party's obligation to proffer a proper supporting declaration with copies of those and the necessary foundation underpinning its request for relief as to those Subpoenas. Although the Notice of Motion filed April 29, 2026 refers to a "Declaration of Mitch Oviedo," no such declaration was filed with the moving papers. The Court has no such pleading filed on the docket with the moving papers.

The Separate Statement filed by the moving party did not contain a verbatim recitation of the document requests contained in the Subpoenas.

The Court is not inclined, at this stage, to embark on making findings and rulings on the individual requests at issue given the above-described issues.

In the exercise of its discretion, rather than deny the motion outright, the parties are directed to parties to discuss possible resolution of the underlying issue.

Disposition

The Court finds and orders as follows:

1. **PARTIES TO APPEAR.**

23. 9:01 AM CASE NUMBER: C25-03108
CASE NAME: DONNA WAGNER VS. TODD JERMAN
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS, SET 1**
FILED BY: WAGNER, DONNA B.
TENTATIVE RULING:

Plaintiff Donna B. Wagner ("Plaintiff") filed a Motion to Compel Further Reponses to Special Interrogatories, Set One, and Requests for Production of Document, Set One, on May 5, 2026 (the

“Motion to Compel Further Responses”). The Motion to Compel Further Responses was initially set for hearing on November 16, 2026.

Upon the stipulation of the parties, the hearing date was advanced to August 10, 2026 and the discovery dispute was set for an Informal Discovery Conference (“IDC”) on June 30, 2026. See Stipulation and Order filed June 18, 2026.

The Court and parties conferred regarding the discovery items in dispute at the IDC on June 30, 2026. Certain agreements were reached, including an agreement to conduct a site inspection in conjunction with efforts to address the subject discovery/investigation issues. The Court also directed the parties to confer further and advise as to the items that remain in dispute by filing a Joint Statement.

The parties filed the Joint Statement on August 3, 2026 that details the particular discovery requests that remain in dispute, as detailed further below.

The Court notes that the Joint Statement contains four “unresolved issues” which it purports are to be decided by the Court. While some of those issues may be relevant considerations as relates to some of the remaining disputed discovery requests, the Court does not purport to address these “issues” as framed at page 6 of the Joint Statement. The Court reviews herein the remaining disputed discovery requests identified and makes findings and rulings as to each.

Background

The discovery requests which remain at issue, as addressed in the Joint Statement (collectively, the “Remaining Discovery Requests at Issue”) are the following:

1. Special Interrogatories (Set One) (the “**SROGs**”) to defendant Costco Wholesale Corporation (“Costco”) **Nos. 8 and 10.**
2. Request for Production of Documents (Set One) (the “**RPDs**”) to Costco, **Nos. 3, 7, 14, 15 and 17;** and

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statement, the opposition papers, the Joint Statement and any further pleadings submitted, the Court makes the following findings and orders

as to the Remaining Discovery Requests at issue:

Remaining Discovery Requests at Issue

SROGs – Nos. 8 and 10.

SROGs, No. 8.

The supplemental response to this interrogatory provides some information about the type of the camera that is the subject of the interrogatory. However, the response is incomplete as to all of the particulars requested by the interrogatories (such as the “model,” “year of manufacture,” and “serial number”).

The responding party contends that “[f]urther details of the model are irrelevant to this matter (do not go towards liability/damages) and are protected trade secrets,” amongst other objections.

While some information about the model of the camera may be reasonably calculated to lead to the discovery of admissible evidence, the request is overbroad. Arguably, knowing the make and model might could, in theory, aid in the ability to know what control or viewing software would permit viewing of any video of the subject incident. However, as discussed in the Joint Statement, the only existing video of the incident is in an “.avi” file type and has been produced by the responding party, Costco.

Moreover, the Court does not find that information about the “year of manufacture” or the particular “serial number” of the camera would have any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the particular claims at issue or lead to the discovery of any evidence related to any such relevant facts.

In light of the foregoing, the Court need not consider the further objections, including the trade secret objection and related objections.

While resolution of the issue regarding production of the video captured might have helped resolve this matter, the Court focuses on the request at issue, at this stage.

Accordingly, the request to compel a further response to this interrogatory is **DENIED**.

SROGs, No. 10.

This interrogatory asks the responding party to “describe in as much detail as possible the job duties of YOUR employee, Defendant TODD JERMAN, as of the date of the INCIDENT.”

Costco’s supplemental response contains a very general description of the job position (“The General Manager oversees the operation of the specific membership warehouse with direct responsibility for complete operations of the warehouse.”). See Costco’s Responses to SROGs, No. 10, Declaration of I. Hooshie Broomand filed July 28, 2026 (“Broomand Decl.”), **Exhibit C**. The amended supplemental response goes further to state various categories of job functions that a General Manager has (“The General Manager is responsible for general oversight of operations and running of facility including: (1) General oversight of hiring and firing of Employees; (2) General oversight of employees’ performance and implementation of policies; (3) General interaction with employees while present; (4) Assists in staff meetings; (5) Generally, ensures customer satisfaction; (6) Assists in smooth operation of facility; (7) Attends meetings at corporate headquarters; (8) Assist with front end duties as necessary; (9) Assist in other warehouse areas as necessary.”). *Id.*

These responses are inadequate. The response, as framed, refers to the “General Manager” and not defendant Todd Jerman. If the response is that “Todd Jerman was a General Manager with Costco and his job functions as a General Manager were ...,” then the response should say so. The generalized

reference to some hypothetical “General Manager” is non-responsive and evasive.

Answers to interrogatories must be complete and responsive. *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783. The answers should reveal all information then available to the responding party. *Id.* at 782. A party “cannot plead ignorance to information which can be obtained from sources under his control.” *Id.*

The stated boilerplate objections are **OVERRULED**. The motion is **GRANTED** as to this interrogatory and a further response shall be made as ordered below.

RPDs – Nos. 3, 7, 14, 15 and 17

RPDs, No. 3.

This document production request seeks “All DOCUMENTS depicting the retail sales floor layout plan of the SUBJECT PREMISES as configured on the date and time of the INCIDENT, such as blueprints, specifications, photographs and drawings, and including the locations of display cases and surveillance cameras.”

The supplemental response by Costco stated that “Responding party has complied with this request and has produced surveillance video footage of the incident...” See Costco’s Responses to RPDs, No. 3, Broomand Decl., **Exhibit C**. The amended supplemental response indicates that “Responding party further agrees to produce the Floor Plan for the Subject Costco dated June 24, 2024,...” *Id.*

Neither of the written responses is code compliant. An assertion that a party “has complied” is not what a responding party is obligated to state. Nor does a proper code-compliant response consist of describing what the responding party “agrees to produce.” Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469. A compliance statement must indicate that the party “will comply” with the particular demand and make the other statements required by Code of Civil Procedure section 2031.220. Code Civ. Proc. §§ 2031.210(a) and 2031.220.

For that reason alone, the Court grants the motion.

Whether actual production has been made of any responsive documents is another issue. Following the IDC, Costco indicates that it produced a floor plan/layout of the subject store “closest in time” to the date of the incident. If this is the only responsive document in its custody, control or possession, then the responding party has satisfied its production. If, in conjunction with a further code-compliant response, it has custody, control or possession of any additional responsive document, it must produce them.

The requesting party observes in the Joint Statement that “the produced floorplan lacks dimensions or indications of space and distance” and suggests that the parties “reach stipulations as to the distances within the retail floor areas,” observing that “the locations of surveillance video cameras are known exclusively to COSTCO and must be provided in response to this Request.” That misses the point. The responding party is under no obligation to create or augment any existing floor plan or diagram. If doing so as a meet and confer compromise could have resolved the dispute, so be it. But that is not meritorious argument about the scope of Costco’s production obligation and its compliance with such obligations.

Accordingly, the motion is **GRANTED** as to this request and a further response shall be made as ordered below.

The stated objections are **OVERRULED** except as to the stated privilege objections. The responding party

is ordered to make a further response to this document request without the overruled objections and to produce any further responsive documents. If any responsive documents are redacted or withheld pursuant to any privilege objection(s), the responding party shall provide a detailed privilege log. The privilege log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

RPDs, No. 7.

Costco indicates in the Joint Statement, that "Plaintiff's Motion to Compel does not address this Request." Costco is correct. RPDs, No. 7 was not included in the moving party's Separate Statement filed in support of the motion. See Separate Statement filed May 5, 2026. Accordingly, the Court makes no ruling on this discovery item.

RPDs, Nos. 14 and 15.

RPDs, Nos. 14 seeks production of "All DOCUMENTS that constitute or refer to YOUR policies, procedures, guidelines, or protocols for responding to, documenting, investigating, or reporting customer accidents or injuries occurring at the SUBJECT PREMISES in effect at any time within the two (2) years before the INCIDENT." RPDs, Nos. 15 seeks production of "All DOCUMENTS concerning YOUR policies, procedures, guidelines, or protocols for record-keeping related to customer accidents or injuries at the SUBJECT PREMISES during the two (2) years before the INCIDENT."

The responses to both of these requests are the same. The initial responses consisted of objections. None of the supplemental responses are code-compliant. Pointing to "[a]dditional documents withheld" or describing one document that the responding party "agrees to produce" is not a code-compliant response for the same reasons discussed above in connection with RPDs, No. 3.

Accordingly, the motion is **GRANTED** as to these requests and further responses shall be made as ordered below.

The stated objections are **OVERRULED** except as to the stated privilege objections. The responding party is ordered to make further responses to these document requests without the overruled objections and to produce any further responsive documents. If any responsive documents are redacted or withheld pursuant to any privilege objection(s), the responding party shall provide a detailed privilege log. The privilege log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

RPDs, No. 17.

This request seeks "All DOCUMENTS concerning any prior incidents, accidents, or injuries involving product-moving equipment at any COSTCO store at any time within the five (5) years before the INCIDENT."

As framed, the Court finds that the request is overbroad and not reasonably calculated to lead to the discovery of admissible evidence. Costco's objections to this effect are **SUSTAINED**. This broad-brush demand would, as written, extend to any Costco store nationwide and cover a multitude of "incidents, "accidents," having no similarity to or other bearing on the accident at issue in this case.

As such, the request seeks production of an extraordinarily wide range of documents that would not have any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the particular claims at issue or lead to the discovery of any such evidence. An appropriately framed and more limited discovery request might well seek appropriately discoverable "similar incident" documents, and the Court discussed with the parties during the IDC the possible scope

of a smaller, agreed upon production. However, a court, in connection with deciding whether to compel a further response, has no obligation to redraft a party's discovery requests in order to limit it to a proper scope. See *Deaile v. General Telephone Co. of California* (1974) 40 Cal.App.3d 841, 851; see also *Ryan v. Superior Court of Los Angeles County* (1960) 186 Cal.App.2d 813, 817 ("...if the interrogatories are so framed as to require the disclosure of relevant as well as irrelevant matter, the trial court in the exercise of its discretion may refuse to order such interrogatories answered."). The Court finds that the moving party has failed to set forth specific facts showing good cause justifying the discovery sought by the demand. Accordingly, the request to compel a further response to this inspection demand is **DENIED**.

Sanctions

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds "substantial justification" for that party's position or other circumstances making the sanction "unjust." Code Civ. Proc. §§ 2030.300(d) and 2031.310(h); see *Weil & Brown*, § 1920.

In addition, a failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court has considered and denies the imposition of sanctions against either the moving or responding party. Costco's objections to certain of the requests were substantially justified, as discussed above. As to other responses, the objections were without merit. The Court is also mindful of the substantial meet and confer efforts made by both sides to resolve the matters overall. Therefore, the Court concludes that sanctions are not appropriate or justified. However, the Court reserves jurisdiction to consider the issue of sanctions further and to impose sanctions if there is non-compliance with the orders made herein by the Court.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is **GRANTED IN PART** and **DENIED IN PART**, as set forth further above.
2. As to discovery requests to which further responses were ordered, Costco shall serve verified further amended responses to such discovery requests within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The Court shall issue the order after hearing.